



Order under Section 57 Residential Tenancies Act, 2006

Citation: St Pierre-Grills v Intrilectual Investments Inc. c/o Pocrnic Realty Advisors Inc., 2026
ONLTB 1701

Date: 2026-01-05

File Number: LTB-T-042932-25

In the matter of: PH1, 36 HESS ST S
HAMILTON ON L8P 3N1

Between: Chloe St Pierre-Grills Tenant

and

Intrilectual Investments Inc. c/o Pocrnic
Realty Advisors Inc. Landlord

Chloe St Pierre-Grills (the 'Tenant') applied for an order determining that Intrilectual Investments Inc. c/o Pocrnic Realty Advisors Inc. (the 'Landlord') gave a notice of termination in bad faith.

This application was heard by videoconference on December 8, 2025.

The Tenant, the Landlord's agent Steve Pocrnic, and the Landlord's property manager Marija Zupanic attended the hearing.

Determinations:

1. As explained below, the Tenant proved the allegations contained in the application on a balance of probabilities. Therefore, the Landlord must compensate the Tenant for her increased rent, her reasonable moving expenses and her inconvenience.
2. Subsection 57(1)(a) of the *Residential Tenancies Act, 2006* (the 'Act') requires the Tenant to prove each of the following on a balance of probabilities:
 - The Landlord gave the Tenant an N12 notice of termination under section 48 of the Act;
 - The Tenant vacated the rental unit as a result of the N12 notice of termination;
 - No person referred to in subsection 48(1) of the Act occupied the rental unit within a reasonable time after the Tenant vacated; and
 - The Landlord served the N12 notice of termination in bad faith.
3. The parties agreed that the corporate Landlord gave the N12 notice of termination to repossess the rental unit for use by its principal Steve Pocrnic.

4. But the Landlord disputed that that the Tenant vacated the unit as result of the N12 notice. After the Tenant received the N12 notice appointing February 29, 2024 as the date of termination, the Tenant gave an N9 notice naming May 31, 2024 and vacated on that date. Subsection 48(3) of the Act gives the Tenant that option. The Tenant operated a business in the same building as the rental unit. The Landlord suggested that once that business failed, the Tenant could no longer afford the rent and further that she had no further need to continue living in the building. He suggested the Tenant vacated voluntarily which the Tenant denied.
5. Bearing in mind that the Landlord carries no burden of proof on this application, I find the Tenant vacated as a result of the Landlord's N12 notice of termination on a balance of probabilities because I accept the Tenant's evidence that she would not have moved out were it not for the N12 notice. I am not prepared to accept the Landlord's suggestion that financial pressure forced the Tenant to move out of the rental unit and select a more expensive one together with all the inconvenience that entails.
6. The Tenant submitted that the N2 notice was given in bad faith because Mr. Pocrnic never had any intention of using the rental unit for residential occupation and in fact never did. Mr. Pocrnic responded that the his office is located in the same building as the rental unit while his actual home is a long way away. Thus his intention to use the rental unit occasionally as a convenient lifestyle choice were genuine when he gave the notice as is borne out by the fact he in does in fact occasionally use of the rental unit when we works late.
7. This Board has consistently held, on the strength of binding authority, that a landlord has no right to repossess leased premises for his own use if his intention is to use the unit only occasionally. It must be used as his main residence.¹
8. Guided by section 202 of the Act that requires me to ascertain the real substance of all transactions and activities relating to the rental unit and the good faith of the parties, I find the application must be granted because the Tenant has proven the grounds on a balance of probabilities.

Remedies

9. Having established the grounds for her application, the Tenant is entitled to those remedies listed in subsection 57(3) that she can prove on a balance of probabilities.
10. The Tenant seeks her increased rent of \$598.00 for 12 months. The Tenant gave detailed comparison of the rental unit and her current rental accommodation. They are approximately of the same sized located in equally desirable (or undesirable as the Tenant would have it) areas of the city. The Tenant allowed that her new home is a slight upgrade in the sense that it is has been freshly remodelled and is slightly lager. The Tenant added that she took that which was available to her given her financial constraints and the realities of the market. It was not her choice to move to expensive accommodations. While I accept that, I reduce the claim slightly to account for betterment.

¹ For a recent example, see *Maleki v Satkin*, 2025 ONLTB 57092 at para. 9.

11. The Tenant also mentioned that hydro is an extra charge at her new place. That claim is dismissed because it is not included in the remedies requested and no proof was presented to substantiate the quantum claimed.
12. The Tenant will be awarded \$6,500.00 for the increased rent she incurred.
13. The Tenant seeks \$5,090.61 for the reasonable out-of-pocket moving, storage and other like expenses that the Tenant incurred. The particulars of this claim includes several items not properly recoverable under this head of damages (such as lost wages or rent deposit paid to her new landlord) and those items that are properly included (such cost of U-Haul rentals) are not supported by corroborating documentation. Still I accept the Tenant's evidence that she incurred costs related to renting a moving van and paying connection charges to utility providers. I assess those damages at \$500.00 which I consider fair and reasonable in light of the evidence.
14. The Tenant seeks general compensation in maximum allowed under paragraph 1.1 of subsection 57(3). The Board can make an award under this head of damages to compensate tenants for their inconvenience and mental distress occasioned by being unlawfully evicted. These awards are essentially in the character of general damages but they must still be proven on a balance of probabilities. In her application, the Tenant mentioned stress and anxiety occasioned by her precarious financial position aggravated by having to secure alternate housing. There was no evidence of any particular malady or any other details about the stress and anxiety. It is also probable that at least part of the Tenant's precarious financial situation and stress occasioned by it are related to her failed business and not entirely attributable to this unlawful eviction. Still, I accept that being unlawfully evicted from one's home is inconvenient and an affront to one's dignity which is compensable. Based on the evidence presented and my knowledge of similar cases decided by the Board, I assess an award of \$5,000.00 as fair and reasonable under this head of damages.
15. I find an administrative fine is not warranted in this case. An administrative fine is sometimes levied to encourage compliance with the *Residential Tenancies Act, 2006* and to deter this Landlord and landlords generally from engaging in similar activity in the future. This remedy is not normally imposed unless a landlord has shown a blatant disregard for the Act and other remedies will not provide adequate deterrence and compliance. In this case I find it more probable that the unlawful eviction was the result of the Landlord's genuine misapprehension of the law in thinking that he can repossess the Tenant's home to use as his pied-à-terre and not a deliberate flouting of her rights. The damages awarded are not insignificant and should be sufficient deterrence.
16. The claim for an abatement of the rent must be dismissed because there is no evidence to support it. In principle, an abatement is aimed at compensating a tenant who has paid rent in exchange for a bundle of goods and services and not received that which they paid for. While the Tenant made passing reference to being harassed by the Landlord, there is nothing in the evidence to suggest the N12 notice of termination made the unit or any portion of it unusable or otherwise diminished the Tenant's enjoyment of the rental unit while she lived there.
17. The Tenant incurred costs of \$48.00 for filing the application and is entitled to be reimbursed those costs.

It is ordered that:

1. The total amount the Landlord shall pay the Tenant is \$12,048.00. This amount represents:
 - \$6,500.00 for increased rent the Tenant has incurred for the one-year period.
 - \$500.00 for the reasonable moving and like expenses.
 - \$5,000.00 for general compensation.
 - \$48.00 for the cost of filing the application.
2. The Landlord shall pay the Tenant the full amount owing by January 16, 2026.
3. If the Landlord does not pay the Tenant the full amount owing by January 16, 2026, the Landlord will owe interest. This will be simple interest calculated from January 17, 2026 at 4.00% annually on the balance outstanding.

January 5, 2026
Date Issued

Nersi Makki
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

2026 ONLTB 1701 (CanLI)